
STUDENT RECRUITMENT SERVICE AGREEMENT

DATED 17th OCTOBER 2024

CES HORIZON SDN. BHD.

AND

KEPLER CONSULTING & TRAINING SDN. BHD.

THIS **SERVICE AGREEMENT** is entered into on the date above.

BETWEEN

1. **CES HORIZON SDN. BHD.** (Company Registration No. 201401010624(1086703-W)), a company duly incorporated under the laws of Malaysia and having its registered office at No. 3, Jalan Persiaran Selatan, Horizon Hills, 79100 Iskandar Puteri, Johor (the **"Client"**);

AND

2. **KEPLER CONSULTING & TRAINING SDN. BHD.** (Company Registration No. 201701000009(1214159-X)), a company duly incorporated under the laws of Malaysia and having its registered office at **No 49, Jalan Eko Botani 3/5, Taman Eko Botani 79100 Iskandar** (the **"Service Provider"**).
3. The Client and the Service Provider shall hereinafter be referred to individually as a **"Party"** and collectively as **"Parties"** as the context may require).

WHEREAS:

- (A) The Client owns and operates the School (as defined below) under the Invictus brand in Malaysia.
- (B) The Service Provider is in the business of providing the Services outlined in Schedule 1 and has represented to the Company that it has experience and expertise in performing services equivalent to the Services.
- (C) The Client wished to engage the Service Provider to provide the Services for the School in accordance with the terms and conditions of this Agreement.

NOW THEREFORE, the parties agree as follows:

1. DEFINITIONS AND INTERPRETATIONS

- 1.1. In this Agreement, unless otherwise defined, the following terms shall have its prescribed meanings:
- "Agreement"** means this service agreement including the Schedules.
- "Business Day"** means a day, other than a Saturday, Sunday or gazette public holiday, on which commercial banks are open for business in Malaysia.
- "Acrophyte Pte. Ltd." is the parent company of the Client.
- "Code of Conduct"** means the Service Provider Code of Conduct as set out in Schedule 3.
- "Intellectual Property"** means any and all copyright, rights in inventions, patents, know-how, trade secrets and other confidential information, copyright (including without limit all such rights in computer software and any databases), registered and unregistered trademarks (including without limit any trade, brand or business names and any distinctive smells or sounds used to differentiate goods and services), domain names, registered and unregistered designs, applications to register any of the aforesaid items (including the right to so apply), licences relating to any of the aforesaid items, rights in the nature of any of the aforesaid items in any country, and rights to sue for passing

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off, or other similar industrial or commercial right.

"School" means:

- (i) the international school located at No. 3, Persiaran Selatan, Horizon Hills, 79100 Iskandar Puteri, Johor under the name "Invictus International School (Horizon Hills campus)".

"Services" means the services to be provided by the Service Provider to the Client, the details of which are as set out in Schedule 1, including any variation pursuant to clause 7.

- 1.2. Any obligation by the Service Provider not to do an act or thing shall be deemed to include an obligation not to permit or suffer such act or thing to be done by any servant, agent, staff, employees or invitees or any other person claiming through or under the Service Provider.
- 1.3. A person includes a natural person, corporate or unincorporated body (whether or not having separate legal personality).
- 1.4. A reference to a company shall include any company, corporation or other body corporate, wherever and however incorporated or established.
- 1.5. A reference to this Agreement or to any other agreement or document referred to in this Agreement is a reference of this Agreement or such other agreement or document as varied from time to time.
- 1.6. References to clauses and Schedules are to the clauses and Schedules of this Agreement and references to sections are to sections of the relevant Schedule.
- 1.7. The Schedules form part of this Agreement and shall have effect as if set out in full in the body of this Agreement. Any reference to this Agreement includes the Schedules.
- 1.8. Clause, Schedule and paragraph headings have been inserted for guidance only and shall not affect the interpretation of this Agreement.
- 1.9. Unless the context requires otherwise, words in the singular shall include the plural and vice versa and a reference to one gender shall include every gender.
- 1.10. This Agreement shall be binding on, and ensure to the benefit of the Client and its successors and permitted assigns. The Service Provider shall not assign or transfer all or any of the rights, benefits and interests arising out of this Agreement to any person, without the prior written consent of the Client.
- 1.11. Any references to a specific statute include any statutory modification, consolidation or re-enactment of such statute and any rules, regulations or orders made under such statute.
- 1.12. If any period of time is specified from a given day, or the day of a given act or event, it is to be calculated exclusive of that day and if any period of time falls on a day which is not a Business Day, then that period is to be deemed to only expire on the next Business Day.

2. COMMENCEMENT

- 2.1. The Service Provider shall provide the Services from the date of this Agreement.

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2.2. The Services provided under this Agreement shall continue for a **minimum term of one (1) year** from the date of this Agreement or until earlier termination of the Agreement in accordance with the terms herein.

2.3. The parties hereby agree that the appointment of the Service Provider shall be on a non-exclusive basis.

3. OBLIGATIONS OF THE SERVICE PROVIDER

3.1 The Service Provider shall perform the Services in accordance with the terms of this Agreement, including the Code of Conduct set out in Schedule 3.

3.2 In the discharge of the Service Provider's obligations, the Service Provider shall:

- (a) cooperate with the Client in all matters relating to the Services;
- (b) comply with all instructions given by the Client through the representative(s) appointed in relation to the Services (name and particulars as notified by the Client to the Service Provider);
- (c) appoint and assign appropriately trained, qualified, skillful, experienced and competent staff or employees to perform the obligations under this Agreement;
- (d) appoint a representative authorized to receive instructions from the Client on behalf of the Service Provider and notify the Client of the name and particulars of such representative;
- (e) perform the Services with professional care and skill and in accordance with best commercial practices and standards in the industry for similar services;
- (f) observe all relevant rules, regulations, procedures and policies prescribed by the Client and the School management team (which the Client may in its sole discretion revise) and comply with all applicable laws and regulations, failing which, the Client may take appropriate action;
- (g) provide regular reports at any intervals or on any occasions as the Client may stipulate, and on any matters as the Client may require; and
- (h) before the commencement of the provision of Services, obtain and at all times maintain during the term of this Agreement:
 - (i) all licences, permits, registrations and other approvals as are necessary to provide the Services; and
 - (ii) adequate insurance cover, as legally required to do so or in accordance with best commercial practices and standards, for the purposes of providing the Services.

3.3 The Service Provider shall not hold itself out as staff of the Client and the School or having authority to bind the Client and the School. Unless the Service Provider has been specifically authorised to do so by the Client in writing, the Service Provider shall not have any authority to incur any expenses in the name of or for the account of the Client and the School.

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4. CONFLICT OF INTEREST

- 4.1. The Service Provider represents to the Client that as of the date of commencement of this Agreement, no conflict of interest exists or is likely to arise between the Client, the School, and the Service Provider in relation to the performance of the obligations of the Service Provider under this Agreement.
- 4.2. The Service Provider shall not, during the term of this Agreement, engage in any activity likely to compromise the ability of the Service Provider to perform its obligations under this Agreement fairly and independently. The Service Provider shall immediately disclose to the Client any activity which constitutes or may constitute a conflict of interest.

5. CHARGES AND PAYMENT

- 5.1. In consideration of the provision of the Services by the Service Provider, the Client shall pay the commission set out in Schedule 2.
- 5.2. The Service Provider agrees that the commission set out in Schedule 2 is not subject to adjustment or recalculation under any circumstances, except as agreed in writing with the Client. The Service Provider further agrees and acknowledges that other than the payments set out in Schedule 2, it shall not be entitled to any other amount or be reimbursed for any out-of-pocket expenses other than those which were incurred with the prior written consent of the Client.
- 5.3. Subject to clause 5.4, the Client shall pay the commission to the Service Provider within thirty (30) days of the date of receipt of an invoice which is properly due and submitted to the Client by the Service Provider, to a bank account nominated in writing by the Service Provider.
- 5.4. In the event the Client desires to dispute in good faith any invoice, or any item under an invoice, the Client shall, within five (5) Business Days of the receipt of the given invoice, provide the Service Provider with a written notice setting forth the details of the disputed invoice or item and the amount in question. the Client will make payment to the Service Provider for the amount of the other item(s) or invoice(s) not in dispute and only withhold payment for disputed item(s) or invoice(s). The parties will work together, in good faith, to resolve such dispute(s) within forty (40) Business Days after such notice of dispute is sent. If, notwithstanding such efforts, the parties are unable to resolve the dispute, the dispute will be settled in accordance with clause 18. For the avoidance of doubt, the Client' failure to pay an invoice or item of an invoice that it disputes in good faith shall not constitute a breach under this Agreement.
- 5.5. The Service Provider shall maintain complete and accurate records of all costs and expenses incurred by the Service Provider in providing the Services and the Service Provider shall allow the Client to inspect such records at all reasonable times on request.
- 5.6. The Service Provider shall be responsible for payment of all taxes to which it is subject in respect of receipt of the commission and the Client shall not have any obligation to reimburse the Service Provider for such payment.

6. GENERAL REPRESENTATIONS AND WARRANTIES

- 6.1. The Service Provider represents and warrants to the Client that:
- (a) the Service Provider has all requisite corporate power and authority to enter into this Agreement and to provide the Services;

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- (b) this Agreement has been duly authorised by, and upon execution will constitute a valid and legally binding agreement on, the Service Provider, enforceable against the Service Provider in accordance with its terms;
- (c) the Service Provider holds all licences required by the relevant authorities and under applicable laws that are necessary to lawfully provide the Services and will provide the Client with a copy of any licences, qualifications and registration as may be requested;
- (d) the Service Provider is not a party to any agreement or restriction that would prohibit or impede the Service Provider from performing its duties and responsibilities under this Agreement and the Service Provider's acceptance of this Agreement and the performance of the duties, and responsibilities under this Agreement will not breach the provisions of any contract, agreement or understanding to which the Service Provider is a party or any duty owed by the Service Provider to any other person; and
- (e) the Services will conform to all descriptions and specifications as set out in Schedule 1.

6.2. The Service Provider shall promptly notify the Client in writing of any matter or thing of which the Service Provider becomes aware which is a breach of any of the representations and warranties in this clause 6.

6.3. The Service Provider acknowledges that the representations and warranties set out above are continuous in nature and deemed to have been given from the date of this Agreement and the Client has relied on the representations and warranties in making its decision to enter into this Agreement.

7. VARIATIONS

7.1. The Client may request for changes, including additions, variations or omissions to the original scope of Services. For the avoidance of doubt, the Service Provider shall not be permitted to request for any changes to the original scope of Services unless such changes are required to comply with applicable safety or statutory requirements. Any such request shall be provided in writing in accordance with clause 17 and constitute a change request, to which the provisions below shall apply.

7.2. If a change request originates from the Service Provider, it shall provide, with the change request, written details of the following:

- (a) the reasons for the change request; and
- (b) the impact of the change request on any of the terms of this Agreement (if any).

7.3. If a change request originates from the Client, the Service Provider shall provide to the Client the following information in writing, within seven (7) Business Days of receiving the change request:

- (a) the timeframe required to implement the proposed change; and
- (b) the impact of the change request on any of the terms of this Agreement (if any).

8. CONFIDENTIALITY

8.1. The Service Provider undertakes to, and shall procure that its directors, employees, agents, consultants, subcontractors or professional advisors ("**Representatives**"), keep confidential any

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information relating to the terms of this Agreement or the matters contemplated herein or any confidential knowledge or information or affairs of the Client and the Schools which it receives or obtains as a result of this Agreement ("**Confidential Information**") and shall not during the subsistence of this Agreement and for a period of two (2) years after the expiry or termination of this Agreement, disclose such Confidential Information save and except:

- (a) where duly authorised in writing by the Client; or
 - (b) as is required by any law, judicial order or decision, request or any regulation or rule or any governmental, supervisory or regulatory authority (including without limitation any relevant stock exchange or securities council), provided that the Service Provider (i) to the extent legally permissible, notifies the Client in writing in advance of the disclosure so as to allow the Client to take legal or other action to protect its Confidential Information, (ii) discloses only such Confidential Information as would be required to comply with such requirement, and (iii) continues to maintain the confidentiality of such Confidential Information in all other circumstances.
- 8.2. The Service Provider shall not, and shall procure that its Representatives shall not, use the Confidential Information for any purpose other than for the Service Provider to perform its obligations under this Agreement.
- 8.3. The Service Provider undertakes to ensure that all persons to whom the Service Provider discloses any information pursuant to clause 8.1 above are made aware, prior to disclosure, of the confidential nature of such information and that they owe a duty of confidence to the Client and to use all reasonable endeavors to ensure that such persons comply with the provisions of this clause 8.
- 8.4. The Service Provider shall ensure that it has sufficient procedures and protections in place and shall continue to keep such procedures and protections in place in order to enforce and maintain the confidentiality and prevent unauthorised use and disclosure of the Confidential Information.
- 8.5. Without prejudice to any other rights or remedies of the Client under this Agreement, in the event of any unauthorized, unlawful, and/or unintended use, access, disclosure, alteration, loss, or destruction of Confidential Information, the Service Provider shall immediately notify the Client and cooperate with the Client's requests to investigate and remedy such incidents and provide appropriate response and redress and use every endeavor to prevent a recurrence of the same.
- 8.6. Nothing in this clause 8 shall extend to Confidential Information which:
- (a) was in the Service Provider's possession at the time of or before the disclosure by the Client;
 - (b) is or becomes a matter of public knowledge through no breach of this Agreement by the Service Provider or its Representatives; or
 - (c) is rightfully received by the Service Provider from a third party who could lawfully disclose such Confidential Information without breaching any duty of confidentiality.
- 8.7. All Confidential Information provided to the Service Provider or otherwise in its possession or within its control shall be destroyed, permanently erased or returned to the Client on request, provided that such obligation shall not apply to such Confidential Information:
- (a) that the Service Provider is required to retain to ensure compliance with applicable law, rule, regulation or professional standards or in accordance with internal policies regarding the keeping of records generally; or

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(b) that is contained in electronic storage which cannot be reasonably isolated for deletion, provided however that the confidentiality obligations contained in this Agreement shall continue to apply to such Confidential Information that is retained.

9. INTELLECTUAL PROPERTY

- 9.1. In so far as the Service Provider is using any materials, manuals, methods, systems, software or any other form of know-how (collectively, "**Materials**") in the course of providing the Services, the Service Provider represents and warrants to the Client that it has the right to use the Materials and is not in infringement of any rights of third parties (including those relating to intellectual property) in respect of the use of the Materials.
- 9.2. The Service Provider shall indemnify the Client against all legally enforceable claims, damages, losses or expenses arising out of or in connection with any infringement or alleged infringement of Intellectual Property rights arising out of or in connection with the use of the Materials under this Agreement.
- 9.3. The Service Provider must not use the name or trade names of the Client and the School in a manner that suggests that the Client and the School endorse or are associated with the Service Provider's business, products or services, unless otherwise approved by the Client.
- 9.4. All documentation and other materials provided by the Client to the Service Provider arising out of or in connection with the provision of the Services (collectively, "**Company Materials**") will remain the property of the Client and the School and nothing in this Agreement assigns any Intellectual Property rights in the Company Materials to the Service Provider. The Service Provider shall not use or otherwise deal with the Company Materials for any purposes other than in connection with the performance of its obligations under this Agreement.
- 9.5. This clause 9 shall survive the expiry or, as the case may be, termination of this Agreement.

10. INDEMNITY

- 10.1. The Service Provider shall indemnify and hold the Client harmless from all claims, liabilities, costs, actions, claims, proceedings, losses, damages, penalties, fines and expenses (including legal and other professional fees and expenses) awarded against, or incurred or paid by, the Client as a result of or in connection with the Services including:
- (a) breach of any representations and warranties under this Agreement;
 - (b) breach of any statutory provisions, by-laws and regulations for the time being in force or as may be amended from time to time by the relevant authorities;
 - (c) any damage or destruction to premises or other property of the Client caused by the Service Provider or its Representatives in the course of performing this Agreement or otherwise;
 - (d) any alleged or actual infringement of any third party's Intellectual Property; or
 - (e) any claim made against the Client in respect of any liability, loss, damage, injury, cost or expense sustained by the Client's employees or agents or by any customer or third party to

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the extent that such liability, loss, damage, injury, cost or expense was caused by, relates to or arises from the provision of the Services as a consequence of a breach or negligent performance or failure or delay in performance of this Agreement by the Service Provider or its Representatives.

- 10.2. The Service Provider shall be liable for all acts and omissions of its directors, officers, employees and agents in connection with the provision of the Services as if the acts and omissions are those of the Service Provider.
- 10.3. This clause 10 shall survive the expiration or, as the case may be, termination of this Agreement.

11. TERMINATION

- 11.1. Either party may terminate this Agreement:
- (a) at any time by confirmation in writing of the mutual agreement between the parties; or
 - (b) by giving no less than ten (10) days' written notice to the other party.
- 11.2. Without affecting any other right or remedy available to the Client, the Client may, by written notice to the Service Provider, terminate this Agreement with immediate effect with no further obligation to make any further payment to the Service Provider (other than in respect of amounts accrued prior to the date of termination) if:
- (a) any of the representations and warranties which the Client has relied on in making its decision to enter into this Agreement, are breached or untrue;
 - (b) in the Client's reasonable opinion, the Service Provider fails to exercise the standard of professional skill, care and diligence required in the performance of the Services, grossly or habitually neglects or is in any way lacking in its commitment to its obligations under this Agreement, including a breach of the Code of Conduct, or is guilty of any conduct (including any criminal conviction) which might damage the reputation or prejudice the business of the Client and/or its parent, related, associate, affiliate company and/or the School;
 - (c) the Service Provider suspends or ceases, or threatens to suspend or cease, to carry on all or a substantial part of its business; or
 - (d) the Service Provider goes into liquidation or makes assignment for the benefit of or enters into an arrangement or composition with its creditors or has a receiver appointed.
- 11.3. On termination (or expiry) of this Agreement, the Service Provider shall:
- (a) immediately return to the Client all Company Materials, reports, manuals, files, notes, accounts, correspondence, books, papers and information (on whatever media and wherever located) and any other property of the Client that was received by the Service Provider during the course of providing the Services; and
 - (b) immediately destroy, permanently erase or return to the Client all Confidential Information in its possession or within its control as requested by the Client and in accordance with clause 8.7.

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- 11.4. In the event of a termination of this Agreement due to a breach or non-observance of any of the terms herein by the Service Provider, it will only be entitled to the commission in respect of prospective students which have been successfully enrolled in the School, provided that such students have paid the required tuition fees to the School prior to the date of termination, but not in respect of prospective students which have not been successfully enrolled in the School as at the date of termination, notwithstanding that the Service Provider may have been responsible in whole or in part for the recruitment of such prospective students.
- 11.5. Termination or expiry of this Agreement shall not affect any rights, remedies, obligations or liabilities of the Party that have accrued up to the date of termination or expiry, including the right to claim damages in respect of any breach of this Agreement, which existed at or before the date of termination or expiry.

12. SUB CONTRACTOR

- 12.1. The Service Provider shall not sub-contract, delegate or otherwise arrange for another person to perform any part of this Agreement or to discharge any of its obligations under any part of this Agreement without the prior written consent of the Client.

13. RIGHT OF INSPECTION AND AUDIT

- 13.1. The Service Provider shall grant to the Client full rights of access to the Service Provider and its staff and provide other reasonable support as the Client may reasonably require during the term of this Agreement for the following purposes:
- (a) identification of suspected fraud, material accounting mistakes or suspected criminal activity;
 - (b) to enable the Client to comply with any laws or fulfil any request by any regulator or regulatory body that has authority over the Client (or to whose rules and guidance the Client is accustomed to comply);
 - (c) verification of the Service Provider and its staff's compliance with any procedures implemented and/or maintained in relation to the Services and the adequacy of such procedures;
 - (d) verification that information and reports provided by the Service Provider are accurate and complete in all material respects.

14. NON-SOLICITATION

- 14.1. During the term of this Agreement and for a period of one (1) year after the expiry or termination of this Agreement, the Service Provider shall not and shall procure its parent, related, associate and/or affiliate company not to, either directly or indirectly, for its own account or for the account of others:
- (a) encourage, induce, contact or in any manner whatsoever solicit any student, client or customer of or any party providing services to the Client and/or its parent, related, associate and/or affiliate company with a view to encouraging or inducing such student client or customer or party to discontinue or curtail any business relationship or other relationship with

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the Client and/or its parent, related, associate and/or affiliate company; and

- (b) encourage, induce or in any manner whatsoever solicit any employee of the Client and/or its parent, related, associate and/or affiliate company to leave their employment with the Client and/or its parent, related, associate and/or affiliate company in order to accept employment with the Service Provider or any other person, corporation, partnership, sole proprietorship or other entity provided that the foregoing shall not be breached by (i) general advertising not targeted at any such person or (ii) soliciting or hiring any person who has been terminated by the Client.

- 14.2. If the restrictions in this clause would otherwise be determined to be invalid or unenforceable by a court of competent jurisdiction, the Party intend and agree that such court shall exercise its discretion in reforming the provisions of this clause to the end that the Service Provider will be subject to a non-solicitation covenant which is reasonable under the circumstances and enforceable by the Client.

15. FORCE MAJEURE

- 15.1. If by reason of any act of God, fire, act of government or state, war, civil commotion, labour disputes of whatever nature, virus or disease outbreak, pandemic or epidemic, action or inaction of any governmental authority and any other reason which, in each case, is beyond the control of either Party ("**Force Majeure Event**"), the performance by a Party of its obligations under this Agreement is rendered unduly onerous or impossible, then such delay or non-performance (as the case may be) shall not be deemed to be a breach by the Party affected by the Force Majeure Event of its obligations under this Agreement. In such an event, the obligations of the Party affected by the Force Majeure Event shall be suspended for the period during which such Force Majeure Event continues, provided however that no Party shall be relieved of its obligations under this Agreement by reason of a Force Majeure Event unless it has used all reasonable efforts to mitigate the effects of the Force Majeure Event, including but not limited to taking such measures which are reasonable and appropriate in all the circumstances to overcome the effects of the Force Majeure Event.
- 15.2. Either Party may terminate this Agreement immediately by serving a written notice on the other Party if a Force Majeure Event continues for a duration of thirty (30) cumulative days without prejudice to the rights of either Party in respect of any antecedent breach(es).

16. DATA PROTECTION

- 16.1. The Service Provider shall comply with all applicable laws or legal requirements relating to data protection and privacy, including the Personal Data Protection Act 2012 (No. 26 of 2012 of Singapore) and all subsidiary legislation related thereto ("**Data Protection Legislation**"), Acrophyte Pte. Ltd.'s Data Protection Policy, and the instructions of Acrophyte Pte. Ltd.'s Data Protection Officer with regard to any and all any information and data which can be related to an identifiable individual ("**Personal Data**") collected, used, disclosed, and/or processed in connection with the performance of the Services under this Agreement.
- 16.2. In particular, if the Service Provider is required to use, process or otherwise deal with any Personal Data provided, received or otherwise disclosed or collected by the Service Provider in connection with the performance of the Services under this Agreement, the Service Provider undertakes that it:
- (a) shall use Personal Data only to fulfil its obligations under this Agreement and for no other

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purposes unless otherwise permitted or required under law;

- (b) shall take all reasonable measures to ensure that Personal Data collected, used, disclosed, and/or processed in connection with this Agreement that is in its possession or under its control is protected against loss, and against unauthorised access, collection, use, disclosure, copying, modification, disposal or other similar risks, and that only authorised personnel have access to the Personal Data;
- (c) shall not disclose to any third party any Personal Data collected, used, disclosed, and/or processed in connection with this Agreement without first obtaining the Client' written consent, unless otherwise required under applicable law. If the Service Provider becomes aware that it has a duty under applicable law to disclose such Personal Data, the Service Provider must inform the Client immediately to the extent reasonably practicable;
- (d) shall not retain Personal Data if (i) the purposes for which the Personal Data was collected, used, disclosed, and/or processed in connection with this Agreement is no longer being served by retention of the personal data; and (ii) retention is not necessary for business or legal purposes; and
- (e) undertakes to the Client that:
 - (i) for any Personal Data disclosed by it in connection with this Agreement, it would have, where applicable under Data Protection Legislation, prior to disclosing such Personal Data to the other Party, obtained the appropriate consent from the individuals whose Personal Data are being disclosed, to permit the Client to collect, use, disclose and/or process such personal data for purposes of this Agreement;
 - (ii) any Personal Data disclosed by it to the Client are accurate and complete. Further, the Service Provider shall give the Client notice in writing as soon as reasonably practicable should it be aware that any such Personal Data has been updated and/or changed after such disclosure; and
 - (iii) it shall promptly give the Client notice in writing should it be aware that any individual above has withdrawn such consent as set out in clause 16.2(e)(i).

16.3. Without prejudice to any other rights or remedies of the Client under this Agreement, in the event of any unauthorized, unlawful, and/or unintended use, access, disclosure, alteration, loss, or destruction of Personal Data, the Service Provider shall immediately notify the Client and cooperate with the Client' requests to investigate and remedy such incidents and provide appropriate response and redress and use every endeavor to prevent a recurrence of the same.

17. NOTICES

17.1. All notices and other communications required by the provisions of this Agreement to be given by any of the Party hereto to the other shall be in writing and sent to the recipient's registered office as set out on the first page of this Agreement (or email address set out below), or to such other address as any party may from time to time notify the other.

17.2. Notices shall be deemed duly received:

- (a) if sent by hand, when actually received at the address of the recipient provided that if a notice is served in a day which is not a Business Day or after 5 p.m. on any Business Day, that notice will be deemed to be duly received by the recipient at 9 a.m. on the first Business Day

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after that day;

- (b) if sent by courier, five (5) Business Days after the date of dispatch; or
- (c) by electronic mail to (in the case of the Client) admissions@invictus.edu.my or (in the case of the Service Provider) <Service Provider's email> on receipt of a delivery.

18. GOVERNING LAW AND DISPUTE RESOLUTION

- 18.1. This Agreement shall be governed by and construed in accordance with the laws of Malaysia.
- 18.2. In the event of any dispute or claim arising out of or relating to this Agreement, and the parties are unable to resolve such dispute or claim by mutual agreement, then such dispute or claim shall be referred to the courts of Malaysia and each party irrevocably agrees that the courts of Malaysia shall have exclusive jurisdiction to settle the dispute or claim.

19. MISCELLANEOUS

- 19.1. Each Party shall act solely as an independent contractor, and nothing in this Agreement shall be construed to give either party the power or authority to act for, bind, or commit the other party in any way. Nothing herein shall be construed to create the relationship of partners, principal and agent, or joint-venture partners between the Party.
- 19.2. This Agreement shall be binding on and ensure to the benefit of the Client and its successors and permitted assigns. The Service Provider shall not assign or transfer all or any of the rights, benefits and interests arising out of this Agreement to any person, without the prior written consent of the Client.
- 19.3. A waiver of any right or remedy under this Agreement or by law is only effective if given in writing and shall not be deemed a waiver of any subsequent breach or default. A failure or delay by a Party to exercise any right or remedy provided under this Agreement or by law shall not constitute a waiver of that or any other right or remedy, nor shall it prevent or restrict any further exercise of that or any other right or remedy. No single or partial exercise of any right or remedy provided under this Agreement or by law shall prevent or restrict the further exercise of that or any other right or remedy.
- 19.4. This Agreement, including the schedules attached hereto, constitutes the entire agreement between the Party and supersedes and extinguishes all previous agreements, promises, assurances, warranties, representations and understandings between them, whether written or oral, relating to its subject matter.
- 19.5. Unless provided otherwise in this Agreement, no variation of this Agreement will be effective unless it is in writing and signed by the Party.
- 19.6. If any of the provisions of this Agreement shall become illegal, invalid or unenforceable and provided that such illegal, invalid or unenforceable provision shall not nullify the underlying intent of the Party, such provision shall be severed from the other provisions of this Agreement and shall not affect the validity or enforceability of the other provisions of this Agreement which shall remain in full force and effect. Each Party shall, if required, execute such additional documents as the other Party may reasonably request in order to give valid, legal and enforceable effect to any provision, which is determined to be illegal, invalid or unenforceable.

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- 19.7. The rights and remedies provided under this Agreement are in addition to, and not exclusive of, any equitable relief or any rights or remedies provided by law.
- 19.8. Each party shall bear its own costs and expenses incurred in relation to or in connection with the negotiation, preparation and execution of this Agreement.
- 19.9. This Agreement may be executed in any number of counterparts or duplicates, each of which shall be an original, and such counterparts or duplicates shall together constitute one and the same agreement.
- 19.10. Any right or obligation of the Parties which, by its express terms or nature or context is intended to survive or capable of surviving termination or expiration of this Agreement, shall survive any such termination or expiration.

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Client	Service Provider

IN WITNESS WHEREOF the Parties hereto have executed this Agreement on the date hereinabove mentioned.

Signed by **ABDUL MANNAN**
PRINCIPAL

for and on behalf of
CES HORIZON SDN. BHD.

Signed by **SEO HYUN KYU**
DIRECTOR

for and on behalf of
KEPLER CONSULTING & TRAINING SDN. BHD.

SCHEDULE 1

Scope of Services and specification

1. The Service Provider shall assist the Client to recruit students from Korea, Japan and Malaysia (the **"Agency Countries"**) to study at the School, subject to each student meeting the entry requirements of the School, by performing the following services (the **"Services"**):
 - (a) to provide full administrative, marketing, advertising and recruitment services and facilities in the Agency Countries;
 - (b) to undertake the promotion of the School in the Agency Country based on advertising and promotional materials approved by the Client;
 - (c) to facilitate and organize information seminars in the Agency Country as agreed with and/or in conjunction with the Client;
 - (d) to manage all application and enrolment enquiries about the School from prospective students in the Agency Countries;
 - (e) to conduct appropriate pre-course counseling for prospective students and their parents;
 - (f) to forward all applications and appropriate documentation to the Client for processing promptly;
 - (g) to procure appropriate testing facilities, if required by the Client, in the Agency Countries;
 - (h) to arrange and conduct the admission assessment test for prospective students, where necessary;
 - (i) assist in arranging for the relevant pass to be obtained from the Immigration Department of Malaysia or other relevant Malaysian authorities for the purpose of enabling prospective students to be enrolled in the School; and
 - (j) any other ancillary and related work which the Service Provider should reasonably have anticipated might be appropriate for the Services to effectively meet the requirements of the Client, even if not specifically requested.
2. Without prejudice to the remaining provisions of this Agreement and in connection with the Services, the Service Provider agrees or shall, as the case maybe:
 - (a) that the Client shall have the sole discretion to accept or reject any prospective student recruited by the Service Provider on its behalf and to vary its entry requirements in respect of any prospective student. In the event of rejection, the Service Provider further agrees that it shall not be entitled to claim any commission or costs incurred;
 - (b) that it shall not represent the Client and the School in any other manner except solely as an agent for the recruitment of prospective students and not to provide any warranty and covenants on behalf of the Client and the School;

Client	Service Provider

- (c) that it shall protect and promote the interest of the Client and the School and represent the Client and School professionally and within the terms and conditions stipulated in this Agreement;
- (d) not to make any form of representation whether visual, oral or written or print, publish, distribute or cause the same any articles, brochures or any material which bears the Client' or the School' name or insignia without the prior written consent of the Client;
- (e) that it shall abide by the Code of Conduct in the performance of its Services;
- (f) keep accurate and separate records in respect of the provision of the Services to recruit prospective students for the Client and deliver such records to the Client upon request;
- (g) notify the prospective students of the following financial requirements to be strictly observed:
 - (i) the Client has the right to deregister the student with the Immigration Department of Malaysia and other relevant Malaysian authorities if students do not make payment by the due dates; and
 - (ii) In the event the student is served with a notice of repatriation by the Immigration Department of Malaysia or other relevant Malaysian authorities, he/she shall be responsible and liable to meet all costs incurred including cost of airfare, arising from the repatriation; and
- (h) no fees or costs shall be charged to the Client for promotion and advertisements in any form conducted by the Service Provider, provided that prior written consent of the Client is obtained for such promotion and advertisements.

Client	Service Provider

SCHEDULE 2

Commission

1. CES Horizon agrees to pay the Service Provider **10% of paid tuition fees** for the first year as commission for students referred by the Service Provider and after the student's completion of school term.
2. Commission is payable on a termly basis which aligns with the collection of the tuition fees.
3. The commission fees will be deducted from the total nett amount of tuition fees paid, which may differ after the deduction of scholarships and/or promotions, whenever applicable.
4. No commission will be paid for students who fail to obtain any of the relevant passes from the Immigration Department of Malaysia or other relevant Malaysian authorities. In the event such student(s) fail to obtain any such passes, the Client will refund the tuition fees already paid to the School to such student(s) accordingly.

Client	Service Provider

SCHEDULE 3

Service Provider Code of Conduct

- 1.1 The Service Provider must not contravene any expectation stated in this Agreement.
- 1.2 The Service Provider must not be engaged in any unethical practice such as making claims, warranties, representations or statements which may be false, untrue, ambiguous, misleading, inaccurate or fraudulent. The Service Provider shall promote themselves and the Client fairly and provide honest, accurate and complete information about themselves and the Client.
- 1.3 The Service Provider must be aware of relevant Malaysia laws and regulations of any Singapore government agency and shall perform the Services in accordance with such laws and regulations.
- 1.4 The Service Provider must be aware of relevant policies and procedures of the Client and shall perform the Services in accordance with such policies and procedures.
- 1.5 The Service Provider must apply principles of fair trading when recruiting students and shall not engage in high-pressure sales, "bait and switch" advertising or similar unfair practices.
- 1.6 The Service Provider must not be negligent, careless or incompetent such that they compromise the integrity and reputation of the School.
- 1.7 The Service Provider must follow the School's procedure to clarify any doubt.
- 1.8 The Service Provider agrees to employ appropriately qualified staff, or to train all staff that will handle student recruitment and ensure that they will be able to perform the Services professionally.
- 1.9 The Service Provider should ensure that the applicant meets the pre-requisites of the course for which they are applying based on the applicant's qualifications and proficiencies.
- 1.10 The Service Provider undertakes to follow the selection and enrollment procedures of the School and to make available all original applicant documentation to the School upon request.
- 1.11 The Service Provider agrees to ensure that all applicant information collected as part of the application and enrollment process is securely kept and that the handling of all applicant information complies with the Client' and the School' confidentiality and security policy.
- 1.12 The Service Provider should not release any advertisement (including usage of the logo of the School, name or any details that is associated with the School) on behalf of the School without the prior written consent of the Client or the relevant School's management team.
- 1.13 The Service Provider should not collect any fees or money (other than the declared commission) from any applicants and should disclose to the Client if any fees, commission or other money is paid to them by any applicant.

Client	Service Provider